

Deleep Singh v. District Magistrate

Allahabad High Court · Division Bench · 11 May 2022 · Writ-C No. 12677 of 2022 · **Writ disposed; petitioner relegated to Clause 6.8 objection.**

HEADNOTE

Writ seeking quashing of a recovery certificate as contrary to Section 56 of the Electricity Act, 2003 and Clause 8.2 of the U.P. Electricity Supply Code, 2005 disposed of without merits on the licensee's statement that the consumer may file an objection under Clause 6.8, to be decided by a reasoned speaking order after hearing.

FACTUAL SUMMARY

Deleep Singh filed a writ in the Allahabad High Court to quash a recovery certificate or writ of demand dated 14 March 2022, saying it was issued without authority and contrary to Section 56 of the Electricity Act, 2003 and Clause 8.2 of the U.P. Electricity Supply Code, 2005. Respondents included the District Magistrate and the electricity licensee (respondent no.3). Licensee's counsel stated on instructions that the petitioner could file a Paragraph 6.8 objection. The Court did not examine the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand — alternate remedy

HOLDING

Where the licensee states that the consumer may file an objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 against a recovery certificate or writ of demand, the High Court may dispose of a writ challenging that demand without expressing any opinion on merits, directing that any such objection filed within four weeks be decided by a reasoned speaking order, preferably within four weeks, after reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a recovery certificate disposed of by relegating the petitioner to a Clause 6.8 objection, without a merits grant or refusal. ¶ 1

assessment-6.8-alternate-remedy On the licensee's statement, the Court directed that a Paragraph 6.8 objection, if filed within four weeks, be decided by a reasoned speaking order after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE/WRIT OF DEMAND DATED 14.03.2022 WAS ISSUED WITHOUT AUTHORITY OR CONTRARY TO SECTION 56 OF THE ELECTRICITY ACT, 2003

Expressly no opinion on merits. ¶ 1

NOT DECIDED — WHETHER THE DEMAND VIOLATED CLAUSE 8.2 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised in the prayer; not examined. ¶ 1